

know how wrong it is, but they use it and then they justify it. There are a lot of others who are simply trying to mislead other people. It is in their interest not to have other people understand these issues.

Q Is there any connection between the two at all?

What has copyright to do with licensing and what does it have to do with free software? Well, under today's copyright law, any work that is written or composed somehow is automatically copyrighted. So, there is a copyright on that work or particular authorship. By default, the copyright law says that people are not allowed to copy or distribute or modify the program. In some countries people are not allowed to run it without permission. So, how do you make free software?

The only way is through a formal declaration by the copyright holder saying that you, the user, have the four freedoms. That declaration, we call the free software licence. It is not the only context in which the term 'licence' is used. Licences are signed contracts, but this one is not. This is simply a unilateral grant of permission from the copyright holders of the program. Free software licences have some conditions. It could be a tiny requirement like you can't remove this licence, but some other licences have more requirements. For example, I wrote a licence, which is one of the many free software licences, called the GNU General Public Licence or GNU GPL. And it is used in over two-thirds of all the free software packages. However, GPL is not all—there are other free software licences too.

What's special about this licence is there are certain requirements we call copy-left and that is: "When you redistribute copies of the program, either exact or modified, you must keep the licence the same and you must distribute the whole of the modified version under the same licence and make the source code available." These licences make an extra effort to defend the freedom of every user.

Q What led to the move from GPL version 2 to 3?

That is hard to say, because there were different

reasons for every change. If you look at GPLv3.fsf.org, you can find the rationale document that states the purpose of every change that we made. However, in general, the overall purpose of version 3 of the GPL is the same as version 2—to defend the freedom of every user.

We made some changes for convenience. We made some changes in order to permit things that ought to be permitted. And we made some changes to defend users' freedom against new methods of taking it away. For instance, there are some changes we made to better defend freedom against software patents; we made some changes to block tivoization. We also made some changes so that you can lawfully redistribute the software using BitTorrent. Because it turns out that BitTorrent violates GPL v2. But, obviously, it is a good thing for people to use BitTorrent as long as they use it for the right purpose. So, in GPLv3 we added a clause to make it legal.

Q What do you think about the MS-Novell deal?

The deal between Microsoft and Novell was an attempt to take away our freedom. It is an attempt to convert free software into proprietary software. The way they did it is by using Microsoft's patent claims. A patent is a government-issued monopoly on an idea. Some countries allow patents in the software fields. When that happens, it means that a software technique or feature can be patented. If a country allows software patents then all the developers are in danger, because when you develop a program, you implement many ideas. If some of these ideas are patented that means the patent holder can sue you. If you distribute the copies to some users, then the patent holder can sue those users too in some countries.

The mega corporations own half of the patents; that's true in every field and they cross-licence each other in a way that gives them a form of dominion. This is why the software mega corporations want software patents. Three years ago, the mega corporations in the US asked the government of India to implement software patents and the government went along with it, but the opposition parties blocked it.

"You can see that he [Linus Torvalds] is a person who doesn't believe in freedom. You can tell that from his writings. Why does he reject GPLv3, because GPLv3 protects users from tivoization, which is a fairly new method of denying freedom. It did not exist when I wrote GPLv2 or I would have done something about it then."

